

LAW AND MOTION TENTATIVE RULINGS
DATE: SEPTEMBER 16, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

Rey v. Precision Physical Therapy, et al. (26CV01650)

Defendant’s Motion to Strike Complaint

The motion is denied as moot.

This is a medical malpractice case. Plaintiff, a 91-year-old woman treating with defendants following a stroke, claims defendants’ inattention and failure to take necessary protective measures during one session resulted in plaintiff’s fall. She broke her elbow, hit her head and suffered other unspecified injuries. Due to her age, elbow surgery is not possible, resulting in permanent damage.

Defendant’s motion seeks to strike plaintiff’s claims for punitive damages on the ground she has failed to plead any cause of action supporting malice, oppression, or fraud. However, plaintiff filed her first amended complaint on September 2, 2026, within the time period for an opposition to the motion to strike. Pursuant to Code of Civil Procedure section 472, subdivision (a), the motion is therefore moot.

**Camping Unlimited for the Developmentally Disabled v. County of Santa Cruz
(26CV00990)**

Defendant County’s Demurrer and Motion to Strike

The parties shall appear regarding plaintiff’s counsel’s licensing status and the parties’ stipulation of July 27, 2026. First, the court cannot consider any pleadings or argument by plaintiff’s counsel during his period of suspension by the State Bar. Second, the demurrer and motion to strike were continued with the expectation that plaintiff would amend by September 1,

LAW AND MOTION TENTATIVE RULINGS
DATE: SEPTEMBER 16, 2026 TIME: 8:30 A.M.

2026, but no first amended complaint is on file. Instead, plaintiff filed an application to consider a late opposition to the demurrer and motion to strike. Again, depending on plaintiff's counsel's license status, the court may not be able to consider those late-filed pleadings.

Amadei v. Morgan, et al. (23CV00719)

Plaintiff Eric Amadei's Ex Parte Application for Order to Show Cause (OSC) Why Order for Sale of Real Property Should Not Be Made and Order for Sale of Real Property

The application is granted. The OSC is set for Friday, October 30, 2026. Moving parties shall file papers no later than October 8, 2026, opposition to be filed no later than October 19, 2026, and reply filed no later than October 23, 2026. The court will sign plaintiff's proposed order.